

Subj: USE OF OTHER THAN FULL AND OPEN COMPETITION FOR AN ACQUISITION UNDER THE SIMPLIFIED ACQUISITION THRESHOLD

I. BACKGROUND:

1. FAR 13.106-1(b)(1)(i) states for purchases not exceeding the simplified acquisition threshold, Contracting Officers may solicit from one source if the Contracting Officer determines that the circumstances of the contract action deem only one source reasonably available (e.g., urgency, exclusive licensing agreements, brand-name or industrial mobilization).

2. As required by FAR 13.106-3(b)(3)(i), this memorandum explains the absence of competition for this acquisition, as only one source will be solicited for this requirement (or for a portion of the requirement) and the requirement is not expected to exceed the simplified acquisition threshold.

II. DESCRIPTION OF ITEM OR SERVICE:

A media deliverable, a maximum of 15 minutes in duration, created with standard technology available in 2024, produced specifically to support NAVFAC Washington's external engagement strategy that aims to recruit and retain talented professionals. The media deliverable shall provide a mechanism to communicate who, what, and why of the Command's mission and how it provides support to the US Navy and greater Department of Defense. It should provide an overview of the history of NAVFAC, the Civil Engineer Corps, and the Naval Construction Force (Seabees) as the core communities that make up the NAVFAC Washington mission. This portion of the deliverable should leverage existing public-domain archival imagery and videos from the U.S. Navy Seabee Museum, DVIDS, Library of Congress, and Naval History and Heritage Command Additionally.

In addition, the deliverable shall include coverage at multiple sites within the NAVFAC Washington Area of Operations highlighting recent projects and initiatives of the Command along with personal interviews of existing employees. The interviews should aim to support recruitment and retention while creating dialogue that highlights the Commands culture, the individuals job satisfaction, career growth opportunities, and personal affection toward the mission they serve.

This initiative directly supports Command efforts to increase recruitment and retention of a talented workforce. Currently, NAVFAC Washington suffers from extreme vacancy rates, higher than any other regional command within the enterprise, and requires programmatic tools such as media content to communicate what NAVFAC offers the aspiring professional and tradesperson in this region.

III. THE DETERMINATION FOR USE OF OTHER THAN FULL AND OPEN COMPETITION IS BASED ON THE FOLLOWING (select all that apply):

A. X ONLY ONE RESPONSIBLE SOURCE (select all that apply):

1. ___ RESTRICTIVE RIGHTS. The source has established proprietary rights, limited rights in data, patent rights, copyrights or secret processes in the item or service required.

2. ___ EXCLUSIVE LICENSING AGREEMENTS. The item or service is only available from the Original Equipment Manufacturer (OEM), or there is only one authorized distributor or technical representative for the OEM.

3. X OTHER REASONS. Other reason not identified above:

The entity sourced, Rylan Tuohy, has experience producing similar content for the NAVFAC enterprise and possesses extensive, first-hand knowledge of NAVFAC and the Area of Operations.

B. ___ BRAND NAME. Item required must be a brand name product, or feature of a product, particular to one manufacturer.

C. X UNUSUAL AND COMPELLING URGENCY. The supplies or services are of such unusual and compelling urgency that the Government would be seriously injured unless the agency is permitted to limit the number of sources from which it solicits bids or proposals. Urgent requirements are supplies or services that will result in a work stoppage, or are mission critical and the routine processing time would result in injury to the Government. The determination that the procurement for the above item/service is an urgent and compelling requirement is based on the following:

1. Date on which the requirement was first identified: February 1st, 2024

2. Required delivery date/period of performance: February 19th, 2024

3. Explanation of why delivery/commencement of services by the date mentioned above is required:

The reason for the urgency is due to the production team being required to visit specific projects that were recently completed and access to those facilities will be closed at the end of February. For that reason, this action needs to be pushed with a planned start date of February 19th so that access is available for those recordings and there are no delays for production.

4. If appropriate, include any additional pertinent information.

IV. CERTIFICATIONS/APPROVALS:

Technical / Requirements Certification: I certify that the facts and representation under my cognizance which are included in this justification are complete and accurate to the best of my knowledge and belief.

_____	2/9/2024
Michael Keating	Date

Contracting Officer Approval

I certify that this Justification is accurate and complete to the best of my knowledge and belief.

_____	2/9/2024
James Waite	Date